

IN THE CIRCUIT COURT OF SEBASTIAN COUNTY, ARKANSAS
CIVIL DIVISION

VII

JEREMY HAMILTON

PLAINTIFF

v.

CASE NO. CV-20-283

JEROMY BREWSTER,
RUFFIN TRUCKING LLC, and
PENSKE TRUCK LEASING CO. L.P.

DEFENDANTS

COMPLAINT

Comes now the Plaintiff, Jeremy Hamilton, by and through his undersigned attorneys, and for his Complaint against the Defendants Jeromy Brewster, Ruffin Trucking LLC, and Penske Truck Leasing Co. L.P. states and alleges as follows:

1. That on or about March 17, 2017, Plaintiff Jeremy Hamilton ("Plaintiff") was a resident of Bonanza, Sebastian County, Arkansas.
2. On information and belief, that on or about March 17, 2017, Separate Defendant Jeromy Brewster was a resident of Dallas, Dallas County, Texas.
3. The incident which gave rise to Plaintiff's Complaint occurred in Fort Smith, Sebastian County, Arkansas. As such, this Court has jurisdiction over the parties and subject matter hereto, and venue is proper herein.
4. On information and belief, that on or about March 17, 2017, Separate Defendant Ruffin Trucking LLC ("Ruffin Trucking") was an interstate motor carrier existing under the laws of the State of Texas with its principal place of business in Texas. Ruffin Trucking is registered

with the U.S. Department of Transportation under U.S. D.O.T. Number 2353286. The registered agent for service of process is Jared Ruffin at 904 S Kaufman Street, Ennis, TX 75119.

5. On information and belief, that on or about March 17, 2017, Separate Defendant Penske Truck Leasing Co., L.P. ("Penske Truck Leasing") was an interstate motor carrier licensed to do business in the State of Arkansas. The registered agent for service of process is Corporation Service Company, 300 Spring Building, Suite 900, 300 South Spring Street, Little Rock, AR 72201.

6. On information and belief, Ruffin Trucking and Penske Truck Leasing owned and/or leased the tractor trailer driven by Defendant Jeromy Brewster at the time of the subject collision.

7. On information and belief, Defendant Jeromy Brewster was an agent or employee of Ruffin Trucking and Penske Truck Leasing and was acting within the course and scope of his employment or agency with Ruffin Trucking and Penske Truck Leasing at the time of the subject collision. Therefore, Defendant Ruffin Trucking and Penske Truck Leasing are liable for the actions and negligence of Defendant Jeromy Brewster, under theories of respondeat superior and agency principles.

8. That on or about October 23, 2017 Defendant Jeromy Brewster was driving a tractor trailer westbound in the inside lane on Zero Street, Fort Smith, Sebastian County, Arkansas. Defendant Jeromy Brewster made a right turn from the inside lane to enter South 31st Street. Defendant Jeromy Brewster pulled in front of Plaintiff who was traveling westbound in the outside lane on Zero Street. Plaintiff had no time to react and collided with the tractor trailer with significant force. After impact, Plaintiff's and his motorcycle were caught under the tractor trailer and dragged until Defendant Jeromy Brewster stopped.

9. The Defendant, Jeromy Brewster, operated his vehicle in a negligent, careless and prohibited manner in the following ways: (a) by failing to properly yield the right of way to Plaintiff; (b) by driving in a careless and prohibited manner; (c) driving too fast for conditions; (d) failing to adhere to safe driving principles expected of professional truck drivers with commercial driver's licenses; (e) failing to operate the tractor trailer in accordance with generally accepted safety principles and practice of the trucking industry; (f) by generally failing to act as a reasonably, careful and prudent person would have acted under the circumstances and failed to appreciate the great risk of harm his actions would probably have upon Plaintiff Jeremy Hamilton; (d) and by failing to pay attention to road conditions and other circumstances as they existed at the time of the aforementioned collision.

10. Defendants Ruffin Trucking and Penske Truck Leasing were independently negligent in at least the following ways: (a) by negligently hiring or contracting with Defendant Jeromy Brewster; (b) by failing to properly train Defendant Jeromy Brewster to properly operate a tractor trailer; (c) by failing to properly supervise Defendant Jeromy Brewster; (d) and by otherwise failing to act as a reasonably prudent company under the circumstances.

11. That as a direct and proximate consequence of the negligent acts of the Defendants Jeromy Brewster, Ruffin Trucking, and Penske Truck Leasing, the Plaintiff, Jeremy Hamilton, has sustained serious injuries and permanent impairment; has endured pain and suffering in the past and will endure pain and suffering in the future; has endured mental anguish in the past and will endure mental anguish in the future; has had to undergo medical care and treatment in the past and will have to undergo medical care and treatment in the future; has incurred medical bills in the past and will incur medical expenses in the future, and other damages all to her harm and detriment in the sum and amount that the proof presented at the trial of this matter warrants, with such some

being in excess of the minimum amount required for jurisdiction in the United States District Courts in diversity of citizenship cases.

WHEREFORE, premises considered, Plaintiff, Jeremy Hamilton, prays judgment against the Defendants Jeremy Hamilton, Ruffin Trucking LLC, and Penske Truck Leasing Co., L.P. in the sum and amount that the proof presented at a trial of this matter warrants, with such some being in excess of the minimum amount required for jurisdiction in the United States District Courts in diversity of citizenship cases, for costs, for attorney's fees to the extent permitted by law, and for such other relief as is just and proper whether specifically prayed for or not. Finally, Plaintiff demands a trial by jury in this matter.

Respectfully submitted
JEREMY HAMILTON, Plaintiff



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